

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 13
Honorable Daniel T. Nishigaya
R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: May 29, 2026 TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 8	21CV385110	Charel Winston et al vs Peter Nguyen et al	Motion: Leave to Amend Ctrl Click (or scroll down) on Line 8 for tentative ruling.
LINE 9-11	24CV448245	Hamid Khazaeli vs Julie Cliff et al	Motion Compel/Sanctions/Seal Ctrl Click (or scroll down) on Line 9 for tentative ruling.
		9:01 CALENDAR	
9:01 LINE 1	21CV392258	Hsin Chu vs Hak Chun Ng	Hearing: Order of Examination Due to a Notice of Bankruptcy Stay filed for Judgment Debtor on April 22, 2026, this matter is OFF CALENDAR.
9:01 LINE 2	25CV471942	Jun Lu vs Rozita Dadgostari	Motion: Withdraw as Attorney Based on Substitution of Attorney filed May 4, 2026, this motion is MOOT and OFF CALENDAR.

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Calendar Line 1

Case Name: *Monar LLC vs Kenneth Rodrigues & Partners, Inc. et al*

Case No.: 24CV442463

Defendants (KRP) seek an order: (1) Compelling Plaintiff (Monar) to serve verified a supplemental responses to KRP's Form Interrogatories-Construction, Set One, Special Interrogatories, Set One, and Requests for Interrogatories-Construction, Set One, Special Interrogatories, Set One, and Requests for Production of Documents, Set One in the nature of the Statement of Claim agreed to by them in a fashion admissible in a court of law; (2) Compelling Monar to produce supplemental documents fully responsive to KRP's Request for Production of Documents, Set One, and to identify any and all documents being withheld on privilege or other grounds; and (3) that Monar and its counsel pay monetary sanctions to KRP for reasonable expenses and attorney's fees incurred in connection with this discovery proceeding in the total sum of not less than \$12,000 (with no sanctions being paid by KRP or their counsel to Monar or its counsel).

The Court begins by noting that KRP's indignant tone and hyperbole is bold in a case in which KRP has been sanctioned by this Court for discovery violations on March 12, 2025, March 14, 2025, March 26, 2025, May 7, 2025, August 27, 2025, and August 29, 2025. Monar's opposition is slightly less *ad hominem*. Fortunately, the correspondence between counsel mostly seems to take a different tact and, unusually, the Court actually preferred reading much of that material.

KRP asserts in its memorandum that as of the filing of the motion “absolutely nothing has been provided in the way of supplemental responses or documents” (Memorandum, at p. 7, emphasis original.) Since the filing of the motion, some exchange has taken place or has been promised. For instance, as of May 15, 2026, Monar claimed to be “producing additional responsive documents which were recently obtained from Plaintiff's third-party contractor.” (Opposition, at p. 2.) KRP argues that Monar has never given “an unequivocal statement ... that the ... 858 pages produced to date comprise all of the responsive documents within Plaintiffs possession, custody, or control.” (Reply, at p. 6, emphasis omitted.) This seems to be easily addressed by Monar. “Plaintiff's counsel further represented the Allocation was subject to further change, as additional information in Teamwrkx's production could affect Plaintiff's expert's evaluation.” (Opposition, at p. 4.) Whatever the Teamwrkx material means to the parties' agreement that Monar would provide a verified Statement of Claim or allocation, that material is now with Monar.

Under these circumstances, although the parties perceive they have engaged in an exhaustive meet and confer effort, the Court is going to require more. Indeed, once before the parties resolved or narrowed discovery issues after motions practice was initiated. In light of the current circumstances the Court orders the following:

- 1) The parties are ordered to conduct good faith, reasonable and meaningful meet and confers, either in person, by phone or video conference, to try to narrow the issues in this motion;

- 2) Monar shall have until June 26, 2026 to further supplement its discovery responses, including the provision of a privilege log if applicable, and its Statement of Claim/Allocation;
- 3) The motion to compel, including each party's request for monetary sanctions, is CONTINUED to July 31, 2026 at 9:00 a.m. in Department 13.
- 4) The parties shall file an updated *joint* statement no later than July 17, 2026, which shall identify the remaining items in dispute and the reasons why further responses should/should not be compelled.

The Court will prepare the final order.

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Calendar Line 2

Case Name: *Eric Hartman vs City of San Jose- Finance Department et al*
Case No.: 24CV444291

Plaintiff moves to reclassify this action from an unlimited civil case to a limited civil case. Defendant opposes and argues that the matter should instead be reclassified as a small claims action.

Under Code of Civil Procedure section 403.040, the Court may reclassify an action upon motion where the amount in controversy falls within the jurisdictional limits of a different classification. A limited civil case is appropriate where the amount in controversy does not exceed \$35,000. There is no dispute, and the Court finds, that the matter will necessarily result in a verdict below the jurisdictional amount required by statute for classification as an unlimited civil case. (*Hiona v. Superior Court* (2020) 48 Cal.App.5th 866, 872; *Stern v Superior Court* (2003) 105 Cal.App.4th 223, 230–231.)

Small claims jurisdiction is governed by Code of Civil Procedure section 116.220 and is subject to separate procedural requirements and party limitations. If a plaintiff files an action as a limited civil case, it cannot be transferred to the small claims division without the plaintiff's consent. (*Rosenberg v. Superior Court* (1998) 67 Cal.App.4th 860, 867.) Defendant cites no authority permitting reclassification of a pending unlimited civil action into small claims on motion.

Accordingly, the motion to reclassify is GRANTED and Defendant's request to reclassify the action as a small claims matter is DENIED. The action is reclassified as a limited civil case.

The Court will prepare the final order.

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Calendar Line 5

Case Name: *Shabnam Ansari v. Fairchild Imaging, Inc., et al.*

Case No.: 25CV477830

Before the Court is Defendant BAE SYSTEMS, BAE SYSTEMS IMAGING SOLUTIONS's (erroneously sued as "BAE Systems, Inc.") ("Defendant" or "BAE Systems") demurrer to the Complaint filed by Plaintiff Shabnam Ansari ("Plaintiff").

This is an action for wrongful termination. According to the allegations of the Complaint, Plaintiff, who is Iranian, began working for Defendants Fairchild Imaging, Inc. and BAE Systems as a Senior Principal Engineer. (Complaint, ¶ 34.) In 2019, Plaintiff was "aware" that Defendant Doug Teeter, a manager at Fairchild Imaging, Inc., Hamamatsu Corporation and BAE Systems, possessed an animosity towards Iranians due to his negative feelings about his Iranian son-in-law. (*Id.*, ¶¶ 21, 36.) Plaintiff informed Human Resources ("HR") that Teeter was attempting to get her fired due to this animosity, including providing negative performance reviews despite Plaintiff performing in a satisfactory manner; however, HR did nothing to prevent him from harassing and discriminating against her. (*Id.*, ¶¶ 37-38.)

In November 2024, the company underwent a reorganization and changed its name to Fairchild Imaging, Inc., with Plaintiff being placed two levels below Teeter and under the direct supervision of Defendant Carol Zhao, who also began to harass her. (Complaint, ¶¶ 40-41, 43.) HR ignored Plaintiff's complaint about her new assignment and Teeter's harassment but instead of intervening, HR started to investigate her and set up a series of meetings where they harassed her about her job performance. (*Id.*, ¶¶ 44-45.)

On April 9, 2025, Plaintiff was admitted to the ER after suffering an extreme medical emergency and took the next two days off to deal with her condition. (Complaint, ¶ 46.) HR denied Plaintiff's request to remotely attend a meeting with HR that was scheduled for April 14. (*Id.*, ¶ 47.) On April 14, Plaintiff went to her primary care physician and took off April 17-22 to deal with her medical condition. (*Id.*, ¶¶ 48, 50.) However, Plaintiff was informed on April 21, 2025 that she was terminated from her employment. (*Id.*, ¶ 50.) Plaintiff alleges that she suffered from a disability that defendants were aware of and she was terminated because of it as well as her national origin and for requesting medical leave and complaining about the harassment and discrimination she was subjected to. (*Id.*, ¶¶ 51, 119, 164.)

Based on the foregoing, Plaintiff initiated this action with the filing of the Complaint on October 16, 2025, asserting the following causes of action: (1) national origin discrimination in violation of Government Code § 12940, subd. (a) (The Fair Employment and Housing Act ("FEHA" or the "Act")) (against the corporate defendants); (2) harassment based on national origin and/or perceived national origin in violation of FEHA (against the corporate defendants, Teeter and Zhao); (3) discrimination based on actual and/or perceived disability in violation of FEHA (against corporate defendants); (4) failure to provide reasonable accommodation (against corporate defendants); (5) failure to engage in interactive process (against corporate defendants); (6) retaliation in violation of FEHA (against corporate defendants); (7) violation of California Family Rights Act ("CFRA") (Government Code § 12945.1 et seq.) (against corporate defendants); (8) retaliation in violation of CFRA (against corporate defendants); (9) failure to prevent discrimination and retaliation in violation of FEHA (against corporate

defendants); and (10) wrongful termination in violation of public policy (against corporate defendants).

On February 26, 2026, BAE Systems filed the instant demurrer to each of the claims asserted in the complaint on the ground of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff opposes the motion.

Defendant's request for judicial notice of the "Complaint of Employment Discrimination" filed by Plaintiff on October 10, 2025 with the California Civil Rights Department ("CRD") (Exhibit 1) is GRANTED. (See Evid. Code, § 452, subds. (c) and (h); *City of Port Hueneme v. Oxnard Harbor Dist.* (2007) 146 Cal.App.4th 511, 513-514 [when ruling on demurrer, court "may also consider material documents referred to in the allegations of the complaint."].)

Defendant first maintains that its demurrer to the first (national origin discrimination), second (harassment based on national origin), third (disability discrimination), fourth (failure to provide reasonable accommodation), fifth (failure to engage in interactive process), sixth (retaliation in violation of FEHA), seventh (violation of CFRA), eighth (retaliation in violation of CFRA), and ninth (failure to prevent discrimination and retaliation in violation of FEHA) causes of action should be sustained because Plaintiff failed to exhaust her administrative remedies as to these claims.

An individual who desires to bring claims under FEHA must first exhaust the administrative remedies provided by the statute, which require him or her to file a complaint with the Department of Fair Employment and Housing.¹ (Gov. Code, § 12960, subd. (c); see *Guzman v. NBA Automotive, Inc* (2021) 68 Cal.App.5th 1109, 1117 (*Guzman*).) The complaint must be in writing, identify the person and employer alleged to have committed the unlawful practice complained of, and "shall set forth the particulars [of the unlawful practice]" (Gov. Code, § 12960, subd. (c).) The receiving agency then decides how to resolve the complaint; if it decides against issuing an accusation, it issues a right-to-sue letter to the aggrieved individual permitting them to initiate a civil action. (*Guzman*, 68 Cal.App.5th at 1117.)

"'Exhausting administrative remedies' refers to this process of notifying the agency of employment problems and giving it the option of using conciliation as a tool. This allows the agency a chance to investigate and solve problems short of court." (*Kuigoua v. Department of Veterans Affairs* (2024) 101 Cal.App.5th 499, 507 (*Kuigoua*).) "The crucial exhaustion test is this: employees satisfy the administrative exhaustion requirement if their claims are like, and reasonably related to, the claims they stated in their administrative filing. If an investigation of what was charged in the administrative complaint would *necessarily* uncover other incidents that were not charged, plaintiffs can include the latter incidents in their court action." (*Id.* at 507-508, internal citations omitted.)

When exhaustion of administrative remedies is a necessary element of cause of action, as it is for claims brought under FEHA, failure to plead facts establishing exhaustion can be

¹ If a CRFA claim is brought alongside a FEHA claim, the CFRA claim may be subject to exhaustion requirement if it is intertwined with the FEHA claim. (Cal. Code Regs., tit. 2, § 14051, subd. (c).)

grounds for a demurrer. (See *Gupta v. Stanford University* (2004) 124 Cal.App.4th 407, 411.) “The scope of the written administrative charge defines the permissible scope of the subsequent civil action.” (*Rodriguez v. Airborne Express* (2001) 265 F.3d 890, 897, citing *Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1121-1123.) “Allegations in the civil complaint that fall outside of the scope of the administrative charge are barred for failure to exhaust.” (*Ibid.*) The requirements pertaining to administrative exhaustion are to “be construed liberally for the accomplishment of the purposes [of FEHA].” (Gov. Code, § 12993, subd. (a).)

Defendant argues that Plaintiff failed to exhaust her administrative remedies with respect to these causes of action because her administrative complaint fails to set forth *any* factual details supporting her claims which are sufficient to put Defendant on notice of them, with the complaint consisting only of “vague and conclusory allegations.” This complaint, Defendant maintains, does not: (1) describe the alleged acts of discrimination and retaliation she allegedly experienced, including identifying individuals who engaged in the alleged conduct; (2) identify the dates each alleged act of discrimination and retaliation occurred; and (3) identify the type of protected activity in which she allegedly engaged. These details, Defendant continues, are required to exhaust administrative remedies under FEHA.

Plaintiff maintains that her CRD complaint is sufficient, insisting that she has satisfied the requisite level of specificity, i.e., setting forth “who, what, when and why,” but as Defendant argues, these assertions are belied by the plain language of the complaint, which is *wholly* devoid of specific facts and alleges in conclusory, boilerplate fashion that Plaintiff experienced unlawful discrimination, harassment and retaliation. Plaintiff did not make any specific allegations about discriminating or harassing conduct that she was the recipient of by Teeter in 2019, and the only date of a purportedly adverse action suffered by her that Plaintiff raised in the Complaint were the adverse actions that allegedly took place “on or about April 21, 2025.” (RJN, Exhibit 1.) Plaintiff does not describe with *any* detail harassing, discriminatory or retaliatory conduct, simply using these terms with no accompanying facts, and she does not identify the individuals who allegedly engaged in specific unlawful conduct. Critically, the purpose of the DFEH complaint “is to supply fair notice of the *facts* sufficient to permit investigation.” (*Hobson v. Raychem Corp.* (1999) 73 Cal.App.4th 614, 630.) Accordingly, the complaint must “identify[] with specificity the discrimination alleged and *the facts supporting it*” (*Ibid.* [disapprove on other grounds].) Plaintiff simply did not “set forth the particulars” of Defendant’s alleged unlawful conduct in her administrative complaint as required under FEHA. (Gov. Code, § 12960, subd. (d).)

Consequently, the Court finds that Plaintiff failed to exhaust her administrative remedies and Defendant’s demurrer to the first, second, third, fourth, fifth, sixth, seventh, eighth and ninth causes of action on the ground of failure to state sufficient facts is SUSTAINED WITHOUT LEAVE TO AMEND. (See, e.g., *Foster v. Bank of Am., N.A.* (E.D. Cal. 2014) 2014 U.S. Dist. LEXIS 113278, *13-14 [defendant granted summary judgment based on failure to exhaust administrative remedies where plaintiff’s administrative complaint “merely assert[ed] in conclusory fashion that she experienced unlawful discrimination, harassment and retaliation” based on her age and did not state any facts concerning the defendant’s conduct].)

Given the foregoing, the Court need not address Defendant’s arguments concerning the timeliness of the first and second causes of action, as well whether they state sufficient facts.

The only remaining claim at issue is the tenth for wrongful termination. Defendant maintains that this cause of action should be dismissed because Plaintiff fails to adequately allege that it was her employer in April 2025 when she was terminated, and an employment relationship is required to confer standing under FEHA. While Defendant is correct with regards to what is required to establish FEHA standing, the Court disagrees that Plaintiff has not sufficiently pleaded that it was her employer. Plaintiff alleges that she became “additionally jointly employed” by Hamamatsu around 2024 when it allegedly purchased an “interest” in Fairchild Imaging, Inc. and that all defendants were an integrated enterprise and joint employers of Plaintiff. (Complaint, ¶ 13.) Defendant argues that these allegations are insufficient because Plaintiff fails to plead factual support to establish the four factors required to demonstrate the existence of an “integrated enterprise.” But Defendant cites no authority for the propositions that an integrated enterprise or joint employment need to be pleaded with this level of detail or that Plaintiff cannot establish the requisite standing by simply alleging that Defendant was her employer, and the case they *do* cite which discusses application of the integrated enterprise test (*Laird v. Capital Cities/ABC, Inc.* (1998) 68 Cal.App.4th 727, 737) involved a motion for summary judgment. Consequently, Defendant’s demurrer to the tenth cause of action on the ground of failure to state facts sufficient to constitute a cause of action is **OVERRULED**.

The Court will prepare the final order.

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Calendar Line 6

Case Name: *Navarette v. Ford Motor Company et al.*

Case No.: 25CV478535

BACKGROUND

On April 11, 2020, Plaintiff Silvestre C. Navarette (“Plaintiff”) purchased a 2019 Ford F-150, VIN: 1FTEW1E49KKC51547 (“Subject Vehicle”), from Heritage Ford (“Defendant”). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Defendant for substantial repair on at least one occasion. (*Id.* at ¶ 59.) Plaintiff alleges that Defendant “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 61.) On October 24, 2025, Plaintiff filed suit against Defendant and Ford Motor Company for violation of statutory obligations, namely the Song-Beverly Act. Plaintiff brings the sole cause of action for negligent repair against Defendant Heritage Ford.

Defendant moves to compel arbitration of this action pursuant to the Retail Installment Sales Contract (“RISC”). Defendant argues the Arbitration Provision in the RISC is governed by the Federal Arbitration Act (“FAA”) and California Arbitration Act (“CAA”). Defendant maintains it has not waived its right to arbitrate and no other grounds exist for revocation of the agreement. Having reviewed the language of the Arbitration Provision and the circumstances of its execution, the Court concludes that the motion should be granted.

LEGAL STANDARD

Defendant maintains that the FAA governs the Arbitration Provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at p 6:19-22.) The Arbitration Provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; see also *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Alternatively, the CAA governs the Arbitration Provision. Code of Civil Procedure section 1281.2 provides:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to

arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

There is a Valid Agreement to Arbitrate

A valid agreement to arbitrate exists between the parties. The Arbitration Provision in the RISC provides in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex A.) Plaintiffs do not dispute that they signed the RISC on April 11, 2020. (Reply at p. 3:20-24.) In addition, Plaintiffs signed and acknowledged notice of the Arbitration Provision as follows: “**Agreement to Arbitrate.** By signing below, you agree that pursuant to the Arbitration Provision on page 5 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Ibid.*) The RISC further drew the Arbitration Provision to Plaintiffs’ attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ ALL PAGES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 5, BEFORE SIGNING BELOW.” (*Ibid.*) Plaintiffs’ signature on these sections of the RISC evinces the fact that he assented to the Arbitration Provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.”].)

Plaintiff argues Defendant has failed to properly authenticate the RISC, and thus fails to meet its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) Here, Defendant has attached a copy of the RISC signed by Plaintiff as Exhibit A to the Declaration of Trina Clayton. To the extent Plaintiff argues Ms. Clayton lacks personal knowledge of the RISC’s execution, “the custodian of record need not have been present or employed when the document was created or signed to authenticate a document in a company’s files.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758-759.) Additionally, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166.) Therefore, Plaintiff has not successfully challenged the authenticity of the agreement, and Defendant has shown a valid agreement to arbitrate.

The Scope of the Arbitration Agreement Covers Plaintiff’s Claims

The scope of the agreement is covered by Plaintiff’s claims. Here, the Arbitration Provision applies to “any claim or dispute, whether in contract, tort, statute, or otherwise . . . which arises out of or relates to your . . . purchase or condition of this vehicle, this contract or any resulting transaction or relationship . . .” (Clayton Decl., Ex. A.) Plaintiffs’ sole cause of action against Defendant is for negligent repair, which inherently relates to the condition of the vehicle.

Plaintiff relies on the *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 (*Ochoa*) to argue “warranty performance is not arbitrable through the form Sales Contract proffered by Defendant.” (Opposition at p. 2:8-10.) The plaintiff there brought an action against the manufacturer and not the dealership. The manufacturer had moved to compel arbitration based on the RISC as a non-party. The Court reasoned:

First we note that the provision begins and ends with references to the contract signatories. It describes disputes between “you and us,” and clarifies that “us” includes the dealers’ employees, agents, successors, or assigns. There is no claim here that Ford is an employee, agent, successor, or assign of any of the dealers. By its terms, the arbitration clause controls disputes (between “you and us”) that arise out of the credit application, purchase, or condition of the vehicle, “this contract,” or any “resulting transaction or relationship with third parties.”

Here, the suit is between plaintiffs and Ford. It is based on allegations of Ford’s improper inducement, concealment, and fraud rather than disagreements with the dealers. The complaints alleged no contractual relationship between plaintiffs and Ford, certainly not such a relationship resulting from the sales contract.

The “third party” language in the arbitration clause means that if a buyer sues a dealer based on the condition of the vehicle, the *dealer* can elect to arbitrate that claim.

(*Id.* at p. 1130 [emphasis in original].) With respect to the claims for breach of warranty arising under the Song-Beverly Act, the Court concluded, “[a]s plaintiffs’ claims are not intimately founded in or intertwined with the sales contracts, plaintiffs should not be estopped from pursuing their remedies against Ford in court.” (*Id.* at p. 1126.) Its ultimate disposition was to preclude Ford from compelling to arbitrate the plaintiffs’ claims because the language of the arbitration clauses did not support an agreement to arbitrate with third parties. (*Id.* at p. 1138.) In addition, the Court held “plaintiffs’ claims flow not from the contracts but from separate statutory requirements and conventional fraud theories. They are not intimately found in and intertwined with the contractual terms.” (*Ibid.*)

Conversely, here, although Plaintiff has sued both the manufacturer and the dealer, only the dealer, Heritage Ford, has moved to compel arbitration. The RISC is an agreement Plaintiff entered into with Heritage Ford. As the dealer and a party to the agreement, Defendant may move to compel arbitration of Plaintiffs’ claims. However, to the extent Defendant argues the RISC creates a warranty, that is unsupported by the agreement itself. The RISC purports to disclaim warranties on the part of the seller but does not frustrate any warranties that the vehicle manufacturer may provide. Plaintiff does not sue Defendant for the breach of any warranty, but instead for negligent repair. As Defendant notes, “this cause of action makes no reference to ‘warranties,’ ‘warranty repair,’ or any sort of ‘warranty repair relationship.’” (Reply at p. 5:18-19.) Rather, the allegations are that Defendant “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (Complaint at ¶ 61.) These allegations relate to the condition of the vehicle and the resulting transaction between Plaintiff and Defendant. (Reply at p. 5:24-26.) The language of the Arbitration Provision, *supra*, is broad and includes claims that arise from the contract but are not limited to it. (Clayton Decl., Ex. A.) The negligent repair claim, is therefore, covered by the Arbitration Provision. The California Supreme Court and subsequent authorities have not addressed whether a signatory dealership may move to compel arbitration pursuant to the RISC for tort claims like negligent repair. Indeed, “the sole issue to be decided by *Ochoa* was whether a *non-signatory* to the sales contract/arbitration provision, such as a vehicle manufacturer, could compel arbitration of warranty claims based on equitable estoppel or as a third party beneficiary.” (Reply at p. 6:9-11.) As a signatory to the RISC, and given the scope of the Arbitration Provision, the Court concludes that Defendant may move to compel arbitration of this claim. The *Ford Motor Warranty Cases* are therefore distinguishable and not applicable under these facts.

The Court next considers whether Defendant has waived its right to arbitration and whether any other grounds for revocation exist.

Defendant Has Not Waived its Right to Arbitrate

The California Supreme Court has identified various factors that are “relevant and properly considered in assessing waiver claims.” (*St. Agnes Medical Center v. Pacific Care of California* (2003) 31 Cal.4th 1187, 1195-1196.) Those factors are:

(1) whether the party’s actions are inconsistent with the right to arbitrate; (2) whether ‘the litigation machinery has been substantially invoked’ and the parties ‘were well into preparation of a lawsuit’ before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) whether important intervening steps [e.g. taking advantage of judicial discovery procedures not available in arbitration] had taken place; and (6) whether the delay affected, misled, or prejudiced the opposing party.

(*Sobremonte v. Superior Court* (1998) 61 Cal.App.4th 980, 992 [internal citations and quotations omitted; *St. Agnes, supra*, 31 Cal.4th at p. 1196.]) The prejudice requirement under the sixth factor has been abrogated by the California Supreme Court. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562 (*Quach*).) The sixth factor regarding prejudice was based on federal cases that “applied an arbitration-specific rule that required a showing of prejudice to establish waiver.” (*Quach, supra*, 16 Cal.5th at p. 569.) “To establish waiver, there is no requirement that the party opposing enforcement of the contractual right demonstrate prejudice or otherwise show harm from the waiving party’s conduct.” (*Id.* at p. 585.)

The multifactor test is not “a mechanical process in which each factor is assessed and the side with the greater number of favorable factors prevails,” nor is the list of factors exclusive: rather, the factors reflect the principles that should guide courts in determining whether a party has waived its right to demand arbitration. (*Zamora v. Lehman* (2010) 186 Cal.App.4th 1, 15 [internal quotation marks and citation omitted].) “The waiver inquiry is exclusively focused on the waiving party’s conduct; neither the effect of that conduct on the party seeking to avoid enforcement nor that party’s subjective evaluation of the waiving party’s intent is relevant.” (*Quach, supra*, 16 Cal.5th at p. 585.)

Plaintiff does not assert that Defendant has waived its right to arbitration. (Reply at p. 1:9-10.) Nevertheless, the facts here do not demonstrate that Defendant has waived its right to arbitration. Defendant has only filed an Answer in this action. (Clayton Decl. at ¶ 4.) Defendant’s Answer includes the affirmative defense of an agreement to arbitrate. (*Id.*, Ex. C.) Defendant has not propounded or responded to any discovery in this matter. (*Id.* at ¶¶ 5, 6.) Thus, Defendant has not engaged in litigation-related conduct. No trial date has been set in these proceedings. (*Id.* at ¶ 7.) Accordingly, no waiver has occurred, and Defendant may move to arbitrate these claims.

There are No Other Grounds for Revocation

As an initial matter, Plaintiffs do not assert any claims for fraud against Defendant Heritage Ford. The cause of action for fraudulent inducement is only asserted against Defendant Ford Motor Company. Instead, at issue is whether the Arbitration Provision is unconscionable.

The party challenging a contractual arbitration provision bears the burden of proving that it is both procedurally and substantively unconscionable. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*)). This may be done on a sliding scale, where the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required, and vice versa. (*Id.* at pp. 125-126.) Nevertheless, both must be shown. Procedural unconscionability focuses on oppression or surprise to the “weaker” party based on unequal bargaining power, whereas substantive unconscionability focuses on the terms of the agreement and whether they are overly harsh or one-sided. (*OTO, supra*, 8 Cal.5th at pp. 125-129.)

Here the Arbitration Provision has a low degree of unconscionability. Although Plaintiff was given notice of the arbitration provision prior to signing, the agreement was offered on a take-it-or-leave it basis and is found on a dense pre-printed form. (Opposition at p. 5:1-15.) (*OTO, supra*, 8 Cal.5th at p. 126 [“An adhesive contract is standardized, generally on a preprinted form, and offered by the party with the superior bargaining power on a take-it-or-leave it basis.”].) However, the Arbitration Provision itself is on a separate page in bold and capitalized font. (Clayton Decl., Ex. A.) (See cf. *Higgins v. Superior Court* (2006) 140 Cal.App.4th 1238, 1250-1251 [noting that procedural unconscionability has been found where the presence of an arbitration provision has not been distinguished through bold lettering, larger font, or capitalization].)

As for substantive unconscionability, the Arbitration Provision provides arbitration is subject to the rules of the American Arbitration Association (“AAA”). (Clayton Decl. Ex A.) The parties must agree on an arbitrator to ensure neutrality. (*Ibid.*) In addition, the Arbitration Provision provides that Defendant is to “pay the arbitration filing and administration fees up to a maximum of \$5,000, and each party shall be responsible for its own attorneys’ fees, unless awarded by the arbitrator under applicable law.” (*Ibid.*)

Plaintiff relies on *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312 (*Cook*) to argue that the Arbitration Provision is substantively unconscionable. (Opposition at pp. 5:17-6:24.) In *Cook*, the Second District Court of Appeal upheld the trial court’s denial of a motion to compel arbitration because of the (1) broad scope of the agreement, (2) the infinite duration, and (3) the lack of mutuality in the claims that were covered by the agreement. (*Cook, supra*, 102 Cal.App.5th at p. 321.) With respect to the broad scope, the agreement required the arbitration of “all claims” whether or not arising out of the employment relationship between the parties. (*Ibid.*) The court noted that employment contracts can provide a “margin of safety” to the party with the superior bargaining power as

long as there is a legitimate commercial need for doing so that is explained in the contract itself. (*Cook, supra*, 102 Cal.App.5th at p. 324.) The agreement there did not explain the justification and the court held that the trial court did not err in holding that the broad scope was substantively unconscionable. (*Id.* at pp. 324-325.)

As for the infinite duration, the agreement purported to survive indefinitely following the employee's termination unless modified by a written document signed by the president of the university. (*Cook, supra*, 102 Cal.App.5th at p. 325.) The court held that this amounted to an express term of duration and did not establish that the agreement was terminable at will. (*Ibid.*) The court upheld the trial court's finding of substantive unconscionability on the grounds that plaintiff could be ordered to arbitrate any injuries she suffered related to USC or its related entities for the rest of her life. (*Cook, supra*, 102 Cal.App.5th at pp. 318, 325.) Finally, the court found that the agreement lacked mutuality because the plaintiff was required to arbitrate any claims she had with USC's related entities, but the related entities were not required to arbitrate their claims with her. (*Id.* at pp. 326-327.) The court noted, "[t]he plain language of the arbitration agreement thus provides a significant benefit to USC's related entities without any reciprocal benefit to Cook." (*Id.* at p. 328.)

Here, the Arbitration Provision is narrower than the one found in *Cook* and applies to claims "arising out of or relates to your credit application, purchase or condition of this vehicle, this contract, or any resulting transaction or relationship" (Clayton Decl., Ex. A.) Thus, the applicable claims are limited to the purchase and condition of the Subject Vehicle. (Reply at p. 8:22-23.) The arbitration provision in *Cook* included claims arising outside the employment relationship. The Arbitration Provision here is not so broad as to include matters beyond the scope of the Subject Vehicle.

As for the agreement's infinite duration, the Arbitration Provision provides that it "shall survive any termination, payoff or transfer of this contract." (Clayton Decl., Ex. A.) Plaintiff argues "[b]y binding consumers to arbitration even after the warranty expires or they no longer own the vehicle, the Heritage agreement imposes an unreasonable and perpetual obligation on the consumer." (Opposition at p. 6:20-22.) The Court does not agree that this clause of the Arbitration Provision is for an infinite duration in the same manner expressed by the arbitration clause in *Cook*. Rather, it expresses an intent to bind subsequent holders of the contract to arbitration for the same limited scope of repairs performed on the Subject Vehicle. Therefore, it is again narrow in this regard and not substantively unconscionable. Given the low degree of procedural unconscionability and absence of substantive unconscionability, the Court concludes that the Arbitration Provision is enforceable.

Accordingly, the Court GRANTS the Motion to Compel Arbitration.

This Action is Stayed in its Entirety

A stay of these proceedings is proper pursuant to Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. Defendant requests a stay of the entire action. Ford Motor Company does not oppose. As Defendant notes, Plaintiff has sued two entities, Ford Motor Company and Heritage

Ford for different causes of action. Defendant argues “[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to Heritage Ford ineffective.” (Reply at p. 10:6-7.) Plaintiffs have not offered any arguments opposing a stay to the entire action. Given the risk of inconsistent rulings presented by proceeding in two different forums, the Court STAYS this action in its entirety pending the outcome of arbitration.

CONCLUSION

The Motion to Compel Arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The matter shall be set for a Status Hearing re: Arbitration on January 29, 2027, at 11:00 a.m. in Department 13.

Moving party shall prepare and submit the final order, accompanied by the necessary Form EFS-020, within 10 days of the date of the hearing.

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Calendar Line 8

Case Name: *Charel Winston et al v. Peter Nguyen et al*

Case No.: 21CV385110

Introduction

On July 2, 2021, Plaintiffs Charel Winston (“Charel”) and Alma Marie Winston (“Alma”; collectively, “Plaintiffs”)² filed the original Complaint against Defendants Peter Nguyen and The Ha Vu Le (collectively, “Defendants”) alleging the following causes of action: (1) breach of contract; (2) breach of implied covenant; (3) conversion; (4) fraud; (5) violation of Business and Professions Code section 17200; and (6) negligence.

Before the Court is Plaintiffs’ motion for leave to amend to allege the following causes of action: (1) wrongful eviction / abuse of unlawful detainer process; (2) concealment; (3) fraudulent inducement and abuse of process; (4) fraudulent enrichment and constructive trust; (5) promissory estoppel / partial performance; (6) survival action for elder abuse, neglect, and civil rights violations; (7) violation of the Americans with Disabilities Act (“ADA”) / unlawful seizure and retaliation against disabled individuals; (8) conversion and unjust enrichment; (9) trespass to chattels; (10) declaratory relief; (11) tortious interferences / civil conspiracy / abuse of process / retaliatory suppression of peaceful exit; and (12) trespass and violation of tribal sovereignty. (See generally, Motion at p. 191.) There are several exhibits attached to the proposed FAC. (*Id.* at pp. 37-190.)

Defendants oppose the motion, arguing that leave to amend should be denied because (1) Plaintiffs delayed in seeking amendment; (2) Defendants would be unduly prejudiced by the addition of multiple new claims on the eve of trial; and (3) the proposed claims are barred given the El Dorado County Superior Court’s rulings and recorded title documents.³ (Opposition at p. 2:2-5.)

Trial is set for August 3, 2026.

Discussion

Legal Standard

A trial court has wide discretion, “in furtherance of justice,” to “allow a party to amend any pleading.” (Code Civ. Proc., § 473, subd. (a)(1).) “It is well established that California courts have a policy of great liberality in allowing amendments at any stage of the proceeding

² The Court refers to the plaintiffs by their first names for purposes of clarity. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)

³ Plaintiffs urge the court to disregard Defendants’ opposition papers because they were improperly served (*i.e.*, The Ha Vu Le, a party to this action, executed the proof of service). The court will overlook this procedural defect because Plaintiff filed and served a reply responding to the merits of the opposition. (See *Tate v. Super. Ct.* (1975) 45 Cal.App.3d 925, 930 [“It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion.”])

so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163, citations and quotations omitted.)

Nevertheless, if the party seeking amendment has been dilatory and the delay has prejudiced the opposing party, the trial court has discretion to deny leave to amend. (See *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.) Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or would add costs of preparation, an increased burden of discovery. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.) “Prejudice will not be presumed but must be affirmatively demonstrated through production of evidence.” (*L&S Framing, Inc. v. Occupational Safety & Health Appeals Bd.* (2023) 93 Cal.App.5th 995, 1012.)

Analysis

Insufficient Supporting Declarations

California Rules of Court, rule 3.1324(b) requires declarations made in support of a motion for leave to amend to state “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” The failure to comply with rule 3.1324(b) may be grounds to deny a motion for leave to amend. (See *Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469.)

Here, Plaintiffs’ declarations fail to state the effect of the amendment and why the amendment is necessary and proper. Furthermore, while both Plaintiffs describe preparing the nineteen exhibits appended to the proposed amended pleadings as “time-consuming”, “labor intensive”, and “painstaking work”, Plaintiffs do not disclose when these efforts began, nor when they discovered the facts underlying the new allegations. (See Motion at pp. 20:17-19, 24:2-3.) Plaintiffs simply assert in their memorandum that the facts became available only after the filing of the original Complaint. This is not sufficient.

Plaintiffs also do not clearly or adequately explain why the request could not be made sooner. Charel vaguely declares, “Following the filing of the original Complaint in this action” she was unable to prosecute this action for “a period exceeding fourteen consecutive months.” (Motion at p. 18:18-20.) Alma also vaguely declares, “Following the filing of the original Complaint”, she was ill for an unspecified period. (*Id.* at p. 22:18-20.) Aside from the Plaintiffs’ self-serving declarations, there is no evidence that Plaintiffs received a medical diagnosis preventing them from participating in this action. Moreover, it is unclear from the declarations when exactly Plaintiffs took their medical leave. From the reply, Plaintiffs appear to suggest that Charel was restricted from litigating this action in 2024. (Reply at p. 5:20-21.) Plaintiffs, however, do not explain why the request for leave to amend could not have been made prior to 2024, when the action had already been pending for almost three years. One plaintiff’s inability to prosecute the case for fourteen months, without more, does not excuse a nearly five-year delay in seeking amendment.

Given the mandatory nature of California Rules of Court, rule 3.1324(b) and Plaintiffs’ failure to comply, the motion for leave to amend is DENIED without prejudice.

Conclusion

Plaintiffs' motion for leave to amend is DENIED without prejudice.

The court will prepare the Order.

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Calendar Line 9 - 11

Case Name: *Hamid Khazaeli v. Julie B. Cliff, et al.*

Case No.: 24CV448245

Before the Court are the following motions: 1) Plaintiff's "MOTION FOR SANCTIONS AND TO COMPEL FURTHER DAY OF DEPOSITION," filed on February 17, 2026, at 10:21 p.m., and 2) Plaintiff's "MOTION TO SEAL," filed February 19, 2026, at 9:17 a.m.

MOTION FOR SANCTIONS AND TO COMPEL FURTHER DAY OF DEPOSITION

Plaintiff filed these motions on February 17, 2026, at 10:21 p.m.

As a threshold matter, multiple motions should not be combined into a single filing. (Gov't Code, § 70617(a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also Weil & Brown, Civil Procedure Before Trial, [8:1140.1] at 8F-60 (The Rutter Group 2011) ["Motions to compel compliance with separate discovery requests ordinarily should be filed separately."].) Among other things, combining multiple motions under the guise of one motion with one hearing date manipulates the Court's reservation system, understates the number of matters before the Court on a given day, and disturbs the Court's ability to efficiently manage its docket.

Plaintiff's motions for sanctions and for a further day of deposition are DENIED.

As for sanctions, the Notice merely states that Plaintiff requests "an order imposing sanctions". This is insufficient. "Notices must be in writing, and the notice of a motion ... must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based. If any such paper has not previously been served upon the party to be notified and was not filed by him, a copy of such paper must accompany the notice." (Code Civ. Proc., § 1010.) In addition, although issue, evidentiary, and terminating sanctions are not mentioned in this original Notice, a motion for issue or evidentiary sanctions requires a separate statement. (Cal. Rules of Court, Rule 3.1345(a)(7).) Plaintiff failed to accompany the notice with a separate statement.

Subsequent to the original filing, Plaintiff has engaged in a scattershot effort to supplement his materials:

On February 17, 2026, at 11:30 p.m., Plaintiff filed an "Amended Notice of Motion." The "Amended Notice" appears to be identical to the Notice and was also not accompanied by a separate statement.

On February 19, 2026, Plaintiff filed "Conditionally Under Seal" the same purported collection of motions, but the "Notice" filed on this date seeks "order imposing sanctions including monetary sanctions." This notice still does not mention issue, evidentiary, or terminating sanctions. It is accompanied by a longer declaration with attached exhibits, but still no separate statement directly pertaining to the motion itself.

On February 20, 2026, at 3:54 a.m., Plaintiff for the first time filed a stand-alone Separate Statement in Support of Plaintiff's Motion for Sanctions and Motion to Compel an Additional Day of Deposition." This Separate Statement is 4 pages long.

On February 20, 2026, at 4:01 a.m., Plaintiff again filed a stand-alone Separate Statement in Support of Plaintiff's Motion for Sanctions and Motion to Compel an Additional Day of Deposition." This Separate Statement spans 103 pages.

On April 30, 2026, at 11:39 p.m., Plaintiff filed an "Amended Declaration in Support of Plaintiff's Motion for Sanctions and Deposition." This is at least the third declaration Plaintiff has filed in relation to these motions, and with exhibits it encompasses 350 pages.

Finally, on April 30, 2026, at 11:44 p.m., Plaintiff filed a 104-page Amended Separate Statement in Support of Plaintiff's Motion for Sanctions for Discovery Responses and Documents."⁴

Under the totality of these circumstances, it is unjust to require Defendant to respond to a consistently moving target of authority, argument, and alleged evidence to support these motions. Nor should or will the Court comb through the file to parse and evaluate the differences between Plaintiff's evolving filings. Moreover, the Court finds that original notice and its supporting papers are insufficient to warrant granting the relief Plaintiff sought then or now, including an additional day of deposition.

In reply, Plaintiff seeks to be excused from the plethora of procedural and perhaps substantive deficiencies in his motions or for a continuance to "serve amended notices." These requests are DENIED. Although Plaintiff has done so repeatedly, Plaintiff has cited and the Court is aware of no authority allowing a moving party to file "amended" notices, separate statements, and declarations without court approval. To the extent such practice is permitted with leave of the Court, the Court will not exercise such discretion in this instance. Plaintiff seeks serious sanctions and orders and it was his obligation to seek them properly in the first instance.

MOTION TO SEAL

Plaintiff has moved to seal the "last documents in Exhibit 2 and 4 of his Declaration of Motion for Sanctions." As noted above, Plaintiff has filed multiple declarations in support of his motion for sanctions. Plaintiff seems to be referring to the declaration attached to his February 19, 2026 "NOTICE OF MOTION AND MOTION FOR SANCTIONS FOR DISCOVERY RESPONSES AND DOCUMENTS; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF HAMID KHAZAEI IN SUPPORT" filed "Conditionally Under Seal."

The unopposed motion is GRANTED.

⁴ Somewhere in the mix, Plaintiff also added a reference to sanctions pursuant to Code of Civil Procedure section 177.5

CONCLUSION

Plaintiff's motions for sanctions and for a further day of deposition are DENIED.

Plaintiff's Motion to Seal is GRANTED.

The Court will prepare the final order.

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